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| STATE OF NORTH CAROLINA                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |                                                    |                          |                                           | File No.                                                                                |                                           | Scan No.(s)                                                                           |                                |
| County                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                                                    |                          |                                           | In The General Court Of Justice                                                         |                                           |                                                                                       |                                |
| NOTE: This petition requires the payment of a filing fee unless the petitioner is an indigent. For expunction of nonviolent felonies under G.S. 15A-145.5, use form AOC-CR-297.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |                                                    |                          |                                           | <input type="checkbox"/> District <input type="checkbox"/> Superior Court Division      |                                           |                                                                                       |                                |
| STATE VERSUS                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                                                    |                          |                                           | PETITION AND ORDER OF EXPUNCTION<br>UNDER G.S. 15A-145.5<br>(NONVIOLENT MISDEMEANOR(S)) |                                           |                                                                                       |                                |
| Name And Address Of Petitioner (type or print full name)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |                                                    |                          |                                           | G.S. 15A-145.5, -150                                                                    |                                           |                                                                                       |                                |
| Name And Address Of Petitioner's Attorney For Expunction Petition                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |                                                    |                          |                                           |                                                                                         |                                           |                                                                                       |                                |
| Drivers License No.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                                                    | State                    | Race                                      | Sex                                                                                     |                                           |                                                                                       |                                |
| Date Of Birth                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                    | Full Social Security No. |                                           |                                                                                         |                                           |                                                                                       |                                |
| NOTE TO PETITIONER: List the arresting agency and any State or local government agency that has a record of your case. You <b>must</b> provide complete information for each agency. The clerk of superior court will send a copy of this order, if granted, to the agency name(s) and address(es) provided below. The clerk will <b>not</b> provide addresses for you. Do not list the courts, the State Bureau of Investigation, the Department of Adult Correction, or the Division of Motor Vehicles; if the order is granted, those agencies will be notified automatically. Do not list any private entity, like a company that provides criminal background checks. The clerk will not send a copy of this order to any entity that is not an agency of the State of North Carolina or one of its local governments. A private entity required to expunge records will be notified directly by the State or local agencies that distribute criminal justice information to that entity.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                                                    |                          |                                           |                                                                                         |                                           |                                                                                       |                                |
| Name And Address Of Arresting Agency                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |                                                    |                          | Name And Address Of Other Agency (if any) |                                                                                         | Name And Address Of Other Agency (if any) |                                                                                       |                                |
| <input type="checkbox"/> Check here to indicate that additional agencies and/or additional file nos. and offenses are listed on an AOC-CR-285 form that is attached to this petition. (attach form)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                                                    |                          |                                           |                                                                                         |                                           |                                                                                       |                                |
| File No.(s)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | Date Of Arrest                                     | Offense Description      |                                           |                                                                                         | Date Of Offense                           | Disposition                                                                           | Date Of Disposition/Conviction |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |                                                    |                          |                                           |                                                                                         |                                           |                                                                                       |                                |
| PETITION/MOTION TO EXPUNGE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                                    |                          |                                           |                                                                                         |                                           |                                                                                       |                                |
| I hereby move for an expunction pursuant to G.S. 15A-145.5 and certify as follows:<br>1. In the county named above I pled guilty to or was found guilty of the nonviolent misdemeanor(s) listed above, and further certify that: (i) no offense listed above is a Class A1 misdemeanor; and (ii) no offense listed above is an exception identified in G.S. 15A-145.5 as ineligible for expunction.<br>2. This petition is being filed as a motion in the cause in the case wherein I was convicted, after the applicable waiting period: (check one)<br><input type="checkbox"/> For expunction of one nonviolent misdemeanor, at least three (3) years after the date of conviction listed above or when any active sentence, period of probation, and post-release supervision has been served, whichever occurred later. I hereby acknowledge that except as provided in G.S. 15A-145.5(c5), the expunction of one nonviolent misdemeanor prior to a 7-year waiting period will preclude me from expunging additional nonviolent misdemeanors that might otherwise be eligible for expunction.<br><input type="checkbox"/> For expunction of more than one nonviolent misdemeanor, either listed above or listed in this and another petition(s) filed in separate counties pursuant to G.S. 15A-145.5(c4), at least seven (7) years after my last conviction, other than a traffic offense not listed in any such petition, or seven (7) years after any active sentence, period of probation, and post-release supervision has been served, whichever occurred later.<br>3. I have attached to this petition the affidavits required by G.S. 15A-145.5(c1). |                                                    |                          |                                           |                                                                                         |                                           |                                                                                       |                                |
| I certify that this petition and the required affidavits have been filed in this case and that the information set forth above is a complete and accurate statement of the information on file in the office of the clerk of superior court. I hereby request and authorize a name-based State and national criminal record check by the State Bureau of Investigation, a search by the State Bureau of Investigation for any outstanding warrants or pending criminal cases, and a search of the confidential record of expunctions maintained by the NC Administrative Office of the Courts.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                                                    |                          |                                           |                                                                                         |                                           |                                                                                       |                                |
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| CERTIFICATE OF SERVICE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                                                    |                          |                                           |                                                                                         |                                           |                                                                                       |                                |
| I certify that a copy of this motion was served by:<br><input type="checkbox"/> delivering a copy personally to the district attorney. <input type="checkbox"/> leaving a copy at the office of the district attorney with an associate or employee.<br><input type="checkbox"/> depositing a copy enclosed in a postpaid properly addressed envelope in a post office or official depository under the exclusive care and custody of the U.S. Postal Service, directed to the district attorney.<br><input type="checkbox"/> email ( <input type="checkbox"/> from ICMS/OFS) to the district attorney at _____, the email address of record with this court for that person.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                    |                          |                                           |                                                                                         |                                           |                                                                                       |                                |
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| <input type="checkbox"/> Service accepted by the district attorney.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                                                    |                          |                                           |                                                                                         |                                           |                                                                                       |                                |
| Date Service Accepted                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             | Name Of Person Accepting Service (type or print)   |                          |                                           | Signature Of Person Accepting Service                                                   |                                           |                                                                                       |                                |
| NOTE TO CLERK: Regardless of when the reports are returned by the SBI and NCAOC, as provided on the reverse, the hearing may not be scheduled earlier than 30 days after service of the petition on the district attorney.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                                    |                          |                                           |                                                                                         |                                           |                                                                                       |                                |
| REQUEST BY JUDGE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                    |                          |                                           |                                                                                         |                                           |                                                                                       |                                |
| To The State Bureau Of Investigation, Attn: CIIS Expungement Unit, 3320 Garner Road, Raleigh, NC 27610:<br>Please prepare, certify on the reverse side, and attach to this Request any Criminal History Record Information (CHRI) and the results of a search for outstanding warrants or other pending criminal cases for the petitioner, then forward this Request with CHRI attached, confidentially to: Records Officer, Administrative Office of the Courts.<br>To The Records Officer, Administrative Office Of The Courts, PO Box 2448, Raleigh, NC 27602:<br>Complete the report on the reverse side and return it, along with the information attached by the SBI, to the clerk of superior court.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                                                    |                          |                                           |                                                                                         |                                           |                                                                                       |                                |
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(Over)

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| CRIMINAL HISTORY RECORD INFORMATION, OUTSTANDING WARRANTS, PENDING CASES                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                                                                   |                                      |                                                                                                                                      |
| <b>To Any Presiding Judge In The Above-Named County And Court: (Confidential)</b><br>I have conducted a search of the criminal records of the North Carolina State Bureau of Investigation and the Federal Bureau of Investigation, and a search for outstanding warrants or pending criminal cases, based on the information provided, which has not been verified by fingerprint comparisons, and certify that<br><input type="checkbox"/> there is no criminal record and no record of outstanding warrants or pending criminal cases for the petitioner other than the offense(s) identified on the reverse of this form.<br><input type="checkbox"/> the Criminal History Record Information which is attached is a true and accurate statement of all information contained in the criminal records of the State and Federal Bureaus of Investigation for the petitioner identified on the reverse side of this form.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |                                                                   |                                      |                                                                                                                                      |
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| REPORT BY ADMINISTRATIVE OFFICE OF THE COURTS                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                                                                   |                                      |                                                                                                                                      |
| <b>To Any Presiding Judge In The Above-Named County And Court: (Confidential)</b><br>I have searched the confidential file of the names of all persons granted an expunction in North Carolina and certify that<br><input type="checkbox"/> there is no record under the name of the petitioner of any expunction under any statute of North Carolina.<br><input type="checkbox"/> there is a record under the name of the petitioner identified on the reverse side and it is attached to this form.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                                                                   |                                      |                                                                                                                                      |
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| FINDINGS OF FACT                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                                                                   |                                      |                                                                                                                                      |
| After a hearing on the petition/motion, the Court makes the following findings of fact:<br><input type="checkbox"/> 1. Petitioner was convicted of the nonviolent misdemeanor(s) listed and in the file number(s) shown on Side One.<br><input type="checkbox"/> 2. Each offense(s) of conviction listed on Side One is eligible for expunction under G.S. 15A-145.5.<br><input type="checkbox"/> 3. Petitioner was convicted of, and completed any sentence received for, the offense(s) listed on Side One: (i) at least three years prior to the filing of this petition for one nonviolent misdemeanor; or (ii) at least seven years prior for more than one nonviolent misdemeanor, as listed on Side One and/or listed in this and another petition(s) filed in separate counties pursuant to G.S. 15A-145.5(c4).<br><input type="checkbox"/> 4. Petitioner: (check one) <input type="checkbox"/> a. has not previously been granted an expunction for one or more nonviolent misdemeanors under G.S. 15A-145.5.<br><input type="checkbox"/> b. previously has been granted an expunction for one or more nonviolent misdemeanors under G.S. 15A-145.5, but pursuant to subsection (c4) or (c5) of that section, the prior expunction(s) does not prohibit the relief sought herein. <input type="checkbox"/> The Court finds good cause to grant this petition, notwithstanding its filing more than 120 days apart from another petition filed pursuant to subsection (c4).<br><input type="checkbox"/> 5. Petitioner is of good moral character.<br><input type="checkbox"/> 6. Petitioner has no outstanding warrants or pending criminal cases, is not under indictment, and no finding of probable cause exists against the petitioner for a felony in any federal court or state court in the United States.<br><input type="checkbox"/> 7. Petitioner is not free on bond or personal recognizance pending trial, appeal, or sentencing in any federal or state court in the United States for a crime that would prohibit this petition for expunction from being granted.<br><input type="checkbox"/> 8. Other than a traffic violation not listed on Side One, the petitioner has no other felony or misdemeanor convictions during the applicable waiting period set forth in G.S. 15A-145.5(c).<br><input type="checkbox"/> 9. Petitioner has no convictions for a misdemeanor or felony listed as an exception to "nonviolent misdemeanor" or "nonviolent felony" in G.S. 15A-145.5(a).<br><input type="checkbox"/> 10. Petitioner has no outstanding restitution orders or civil judgments representing amounts ordered for restitution entered against him/her.<br><input type="checkbox"/> 11. The Court has reviewed all other information the Court deems relevant to this petition, including, but not limited to, affidavits or other testimony provided by law enforcement officers, district attorneys, and victims of crimes committed by Petitioner.<br>12. Petitioner <input type="checkbox"/> is <input type="checkbox"/> is not eligible for an expunction of the offense(s) listed on Side One. If not eligible, it is because:<br>_____ |                                                                   |                                      |                                                                                                                                      |
| ORDER                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                                                                   |                                      |                                                                                                                                      |
| <b>Therefore, the Court hereby ORDERS:</b><br><input type="checkbox"/> 1. The petition is granted. It is ordered that:<br>a. any and all entries relating to the petitioner's charge or conviction shall be expunged from the records of the court. All law enforcement agencies, the Department of Adult Correction, the Division of Motor Vehicles, and any other State or local government agency identified on Side One and on any AOC-CR-285 form that is attached to this petition shall expunge any and all records of the petitioner's criminal charge and any conviction resulting from the charge. The Division of Motor Vehicles shall not expunge records for which expunction is otherwise prohibited by G.S. 15A-151.<br>b. any other State or local government agency shall expunge from its records entries made as a result of the conviction(s) ordered expunged herein upon receipt of a copy of this Order from the petitioner. Any such agency shall also vacate any administrative actions taken against petitioner as a result of the charge or conviction expunged, except that this subsection b. shall not apply to the Department of Justice DNA records and samples stored in the State DNA Database and the State DNA Databank.<br><input type="checkbox"/> 2. For the reason(s) identified in Finding No. 12, the petition is denied.<br><b>NOTE TO CLERK:</b> If denied, file this Order in the case file. Upon expiration of the deadline for appeal from a denial of this Order, destroy any documentation provided with the petition, such as a criminal history report and any NCAOC report of prior expunctions. If granted, send a certified copy of this Order to the petitioner at the address listed on Side One or an updated address as provided by the petitioner.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                                                                   |                                      |                                                                                                                                      |
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| CERTIFICATION BY CLERK                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                                                                   |                                      |                                                                                                                                      |
| I hereby certify that this form is a true and complete copy of the original in this case, and if granted, a certified copy of this Order was sent on the date shown below to the petitioner, the State Bureau of Investigation, the Department of Adult Correction, the Division of Motor Vehicles, and to the arresting agency and any other State or local government agency identified on Side One and on any attachment to this petition.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                                                                   |                                      |                                                                                                                                      |
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| <b>NOTE TO CLERK:</b> If granted, <b>always</b> send a certified copy of this Order under seal to the petitioner, to <b>all</b> the agencies listed in Certification By Clerk above, and to the NCAOC. Send copies for the arresting agency and additional agencies to the addresses provided by the petitioner. Send SBI, DAC, DMV, and NCAOC copies to:<br>State Bureau of Investigation      NC Department of Adult Correction      NC Division of Motor Vehicles, Driver and Vehicle Services, Driver Assistance Branch      NC Administrative Office of the Courts<br>Attn: Expunction Unit      Attn: Combined Records Section      Attn: Hearings/Adjudication Unit      Attn: Records Officer<br>3320 Garner Road      4226 Mail Service Center      3118 Mail Service Center      PO Box 2448<br>Raleigh, NC 27610      Raleigh, NC 27699-4226      Raleigh, NC 27699-3118      Raleigh, NC 27602                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                                   |                                      |                                                                                                                                      |
| <b>NOTE TO PETITIONER:</b> If this petition is granted, the clerk of superior court will send you a certified copy of the final order for your records at the address listed on Side One. If you move, you must notify the clerk in writing of your change of address in order to receive a certified copy. After the case is expunged, the clerk of superior court will have no record of the case and will be unable to provide you with any documentation of the case. This includes the expunction order; it will be destroyed with the case file.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                                                                   |                                      |                                                                                                                                      |
| AOC-CR-298, Side Two, Rev. 7/25 (replaced AOC-CR-281 for nonviolent misdemeanor petitions)<br>© 2025 Administrative Office of the Courts                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                                                                   |                                      |                                                                                                                                      |